

Andhra Pradesh Municipalities (Moving of Resolutions at Meetings of Municipal Council) Rules, 1965

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State of Andhra Pradesh - Act

Andhra Pradesh Municipalities (Moving of Resolutions at Meetings of Municipal Council) Rules, 1965

ANDHRA PRADESH

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Andhra Pradesh Municipalities (Moving of Resolutions at Meetings of Municipal Council) Rules, 1965

Rule

ANDHRA-PRADESH-MUNICIPALITIES-MOVING-OF-RESOLUTIONS-AT-MEETINGS-OF-MUNICIPAL-COUNCIL-RULES-1965 of 1965

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Andhra Pradesh Municipalities (Moving of Resolutions at Meetings of Municipal Council) Rules, 1965

In exercise of the powers conferred by Clause (1) of sub-section (2) of Section 326 read with sub-section (2) of Section 53 of the Andhra Pradesh Municipalities Act, 1965 (Act 6 of 1965), the Governor of Andhra Pradesh hereby makes the following Rules for the moving of resolutions at the meetings of municipal councils, the same having been previously published at pages 68-70 of Rules Supplement to Part 1 of the Andhra Pradesh Gazette, dated 22-4-1965 as required by Clauses (a) and (b) of sub-section (1) of Section 327 of the said Act

1.

These rules may be called the Andhra Pradesh Municipalities (Moving of Resolutions at Meetings of Municipal Councils) Rules, 1968.

2.

In these Rules

(a)

"Act" means the Andhra Pradesh Municipalities Act, 1965;

(b)

"Chairperson" includes the person for the time being in charge of the office of Chairperson under Section 50(2) of the Andhra Pradesh Municipalities Act, 1965 and the Vice-Chairperson or Councillor who presides at the meeting under Section 51 (1) of the said Act; and

(c)

"Government" means, unless there is anything repugnant in the subject or context, the Government of Andhra Pradesh.

3.

A Councillor who wishes to move resolution shall be given ten clear day's notice of his intention to the Chairperson and such notice shall contain the resolution which he wishes to move; Provided that the Chairperson may allow a resolution to be entered on the list of business with shorter notice than ten days. No resolution shall however be admissible which does not comply with the following conditions, namely:-

(a)

it shall be clearly and precisely expressed and shall raise a definite issue; and

(b)

it shall not contain arguments, inference, ironical expressions or defamatory statements nor shall it refer to the conduct or character of persons except in their official or public capacity.

4.

The Chairperson shall decide on the admissibility of a resolution, and shall disallow any resolution which, in his opinion contravenes the provisions of the Act or the rules made thereunder or may lead to unseemly or communal controversy and his decision shall be final:

Provided that, if in the opinion of the Chairperson, a resolution relates to a matter which is unconnected with the municipal administration, but moved in the larger interest of municipality and in keeping with the declared policies of the Government, he shall refer the resolution to the Government and obtain their orders as to whether it may be admitted.

5.

A resolution which has been admitted by the Chairperson shall be entered in the list of business in the notice to be given under Rule 2 of Schedule 1 to the Andhra Pradesh Municipalities Act, 1965.

6.

(1)

No speech, except with the permission of the Chairperson shall exceed fifteen minutes in duration-
Provided that the mover of a resolution when moving the same, may speak for thirty minutes.

(2)

A member who has moved the resolution may speak by way of reply, but he shall not speak more than twice. Any other member taking part in the discussion shall not speak more than once on the subject.

7.

The discussion of a resolution shall be strictly limited to the subject of the resolution.

8.

When a resolution is under discussion, any member may, subject to Rules 4, 5, 8 and 9, move an amendment to such resolution.

9.

(1)

A member who has moved a resolution or amendment to a resolution shall not withdraw the same except by leave of the council.

(2)

No discussion shall be permitted on a motion for leave to withdraw except with the permission of the Chairperson.

10.

(1)

When an amendment to any resolution is moved, or when two or more such amendments are moved, the Chairperson shall, before taking the sense of the thereon, state or read to the Council the terms of the Original Council motion and of the amendment or amendments proposed.

(2)

Ordinarily, the Chairperson shall put amendments to vote in the order in which they have been moved and lastly the original motion if all the amendments are lost. But it shall be in his discretion in any case to put to vote the original motion an the amendments in such order as he thinks fit.

11.

When any resolution involving several points have been discussed, it shall be in the discretion of the Chairperson no divide the resolution, and put each or any point, separately to vote as he may thinks fit.

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